

28 February 2025

Shane Schleger
403/2-12 Glebe Point Road
Glebe NSW 2037

Dear **Shane**,

Re: Letter of Offer Mineworker – Full Time Maximum Term (“Letter” or “Contract”)

I am pleased to offer you employment on a full time, maximum term basis with Lunar Mining Pty Ltd (“Employer”) as a **Level 3 Miner** at the Ensham Coal Mine. Your employment under this Contract will commence on **18/03/2025** and will be for a maximum term ending on 30th April 2026 (“End Date”) or such earlier date as determined by Ensham Resources (“Client”).

1 Location

Your employment is for the contract the Employer has, to provide services at the Ensham Mine in Central Qld.

2 Qualifying Period

Your employment is subject to a qualifying period of **six months** during which time, you and the Employer will have the opportunity to determine your suitability for the role and business. Either you or the Employer may terminate your employment by giving one weeks’ notice or in the case of the Company, by providing you with payment in lieu of notice.

3 Duties

Your principal duties on commencement will be those associated with underground mining operations, however the Employer or the Client may direct you to carry out any work in any area of the operation that is within your competence, subject to safety and statutory requirements. You may also be required to acquire new skills and undertake training as required to meet the needs of the business and may, subject to any statutory requirements, be required to train others as directed.

4 Hours of Work & Rosters

Ordinary hours of work shall average 35 hours per week over the roster cycle.

Operations may be undertaken up to 24 hours per day, 7 days per week in shift lengths up to 12.5 hours plus changeover and travel time.

You will be required to work the hours that are reasonably necessary to perform your role and roster which will include ordinary hours, rostered overtime hours and reasonable additional hours as required by the Employer or the Client from time to time.

You will initially be required to work **42** hours per week on an even time day night rotating roster of **12** hour shift lengths (**10** ordinary hours + **2** rostered overtime hours), however you

may be required in the future to work other rosters, shift patterns or shift lengths or to change start and finish times or change shift panels within a roster.

5 Wages

The Base Hourly Rate and Flat Hourly Rate that apply at the commencement of this Contract are included below. These rates may increase or decrease during the term of this Contract, by the Employer providing 28 days' notice, but will never be below what you would be entitled to be paid in accordance with the Black Coal Mining Industry Award.

5.1 Base Hourly Rate

Your Base Hourly Rate will be **\$34.50**.

5.2 Flat Hourly Rate

Your Flat Hourly Rate while working the roster outlined in clause 4 above is **\$69.00** per hour.

This Flat Hourly Rate has been calculated to compensate for all award allowances, payments and penalties associated with undertaking your duties, your working environment and working rostered overtime, weekends, shift work and public holidays associated with your roster.

The Flat Hourly Rate is therefore paid for every hour worked on your roster, regardless of whether it is worked on ordinary time, overtime, a weekday, weekend, night shift or on public holidays.

In the event that you are required to work a different roster in the future, a new Flat Hourly Rate will be calculated according to the number and spread of hours contained in the new roster.

5.3 Superannuation

In addition to your Flat Hourly Rate, the Employer will make a superannuation contribution in accordance with superannuation guarantee legislation.

6 Payment of Wages

You will be paid into your nominated bank accounts, the number of which will be agreed with the Employer.

If you or the Employer become aware of errors in payments, such errors will be notified to the other party as soon as is practicable. Any under payments will be rectified as soon as possible. After discussion with you, any overpayments shall be recouped from your wages or any accrued entitlements owing to you at a reasonable rate of recovery.

7 Leave

7.1 Annual Leave

You are entitled to **5 weeks (175 ordinary hours)** annual leave per year.

While you work on a continuous roster, including the roster described in clause 4 above, you will receive an additional week's leave for a total of 6 weeks (210 ordinary hours) per year.

You are required to provide 4 weeks' notice for taking leave, or such shorter period which may be agreed with the Employer and require the approval of the Employer prior to taking such leave.

For each shift of annual leave taken, the deduction from your annual leave balance will be the ordinary hours of the shift taken. E.g., 10 ordinary hours per shift will be deducted for each shift taken while working the roster described in clause 4 above. 210 ordinary hours/10 ordinary hours = 21 shifts per year.

Payment for annual leave will be at your Flat Hourly Rate for your rostered hours of work, which are 42 hours per week for the roster described in clause 4 above.

Unused annual leave on termination of employment will be paid the same as leave taken during employment, however superannuation is not paid on unused leave paid on termination of employment.

7.2 Personal Leave

You are entitled to **3 weeks (105 ordinary hours)** of personal leave per year.

You are required to provide notice prior to the commencement of an absence on personal leave and evidence to the reasonable satisfaction of the Employer that any leave taken was for genuine personal illness or injury or to provide care and support to a member of your immediate family or household.

For each shift of personal leave taken, the deduction from your personal leave balance will be the ordinary hours of the shift. E.g., 10 ordinary hours per shift will be deducted for each shift taken while working the roster described in clause 4 above. 105 ordinary hours/10 ordinary hours = 10.5 shifts per year.

Payment for approved personal leave will at your Base Hourly Rate for the ordinary hours of the absence.

Except where employment is terminated due to serious misconduct, unused personal leave will be paid on termination of employment at the same rate as leave taken during employment, except that superannuation is not payable on this amount. However, as 105 hours personal leave is credited to you in advance each year, on termination of employment, the unused portion of your last accrual will be paid on a pro rata basis according to the time between your anniversary date and date of termination of employment.

7.3 Long Service Leave

You shall accrue and be entitled to long service leave in accordance with the coal mining industry long service leave fund. Payment for long service leave will be at your Flat Hourly Rate for your rostered hours of work.

7.4 Other Leave

All other leave shall be in accordance with the National Employment Standards.

8 Uniforms

We will supply you an annual Purchase Order to the value of **\$400.00**. This goes towards your Hi Vis Work Clothing. If you voluntarily leave the employment within three (3) months of commencement, the cost of the uniforms will be deducted from your final wage.

9 Induction Costs and Medical Expenses

If Lunar Mining incurs the cost of inductions and medical expenses, and you voluntarily resign or leave our employment within six (6) months, the cost of inductions and medical expenses will be taken from your final wage.

10 Employer Policies

You are required to comply with all Employer and relevant site/Client policies, as amended from time to time, including but not limited to, the policies outlined below. These policies, however, do not form part of this contract of employment nor do they create any obligation on the part of the Employer to you.

10.1 Health, Safety & Environment

You are required to comply with the Health, Safety and Environment policies, procedures, directions and management system at all times and failure to comply may result in disciplinary action up to and including termination of employment.

10.2 Fitness for Duty

You must at all times comply with the Fitness for Duty policies which cover the prohibited use and effect of drugs and alcohol as well as fatigue and other physical and psychological impairment and failure to comply may result in disciplinary action up to and including termination of employment.

You can also be directed to undertake medical examinations if the Employer has concerns regarding your fitness to undertake your duties and you must undertake such medical examination by an Employer nominated doctor or other health professional if so directed. You agree that the results of any assessment may be disclosed to the Employer and may be used by the Employer to manage your employment.

10.3 Code of Conduct

You are required to comply with the Employer's Code of Conduct which covers matters including bullying, harassment and discrimination, use of Employer property and systems and conflicts of interest. Failure to comply with any requirement of the Code of Conduct may result in disciplinary action up to and including termination of employment.

11 Fair Work Information Statement

As a new employee, you acknowledge, immediately prior to the Commencement Date, having been given the Fair Work Information Statement at: [Fixed Term Contract Information Statement](#) (fairwork.gov.au) or as otherwise available on the Fair Work Ombudsman website at www.fairwork.gov.au.

12 Confidentiality

You agree to treat as confidential, all information relating to the Employer or its related companies or relating to the Client and any customer or supplier of the Employer or the Client that is not generally available to the public. You agree not to disclose such information except in the proper performance of your duties. Nothing in this clause will require you to keep confidential, information that you are required by law to disclose.

13 Licences

You will be required to hold licences and certificates that are relevant to your work.

14 Relationship to Awards, Industrial Instruments & Laws

The wages and benefits contained in this Letter compensate you for all work performed including, but not limited to, any salary and wages, loadings, penalty rates, allowances and any other entitlements which may apply under any award, other industrial instrument, or law.

To the extent that your wages and benefits, as set out in this Letter, constitute an overpayment of what you would otherwise be entitled to receive under any award, other industrial instrument or law, you agree that the overpayment amount can be offset against any underpayment of entitlements under any applicable award, industrial instrument or law, irrespective of what entitlements your wages and benefits are expressed to be for.

15 Termination of Employment

Unless terminated earlier in accordance with the provisions below, as a maximum term employee your employment will terminate on the End Date without the requirement for further notice or may be terminated earlier based on a reduction by the Client in the number of personnel required. You acknowledge that if your employment ends in the circumstances described above, this is an “ordinary and customary turnover of labour”, and you are not entitled to redundancy payments.

The Employer may terminate your employment at any time by the provision of one week’s notice, or such longer period of notice required by the National Employment Standards, or by payment in lieu of notice. The parties recognise and accept there is no claim to payment in relation to any period beyond the termination date of employment, including where this occurs prior to the End Date.

You may terminate your employment by one week’s written notice to the Employer or forfeiture of pay in respect of any period of shortfall in notice.

In the case of serious misconduct, your employment may be terminated without notice or payment.

On termination of employment, all property of the Employer and the Client and any copies of documents that are the property of the Employer and the Client and in your possession, shall be returned to the Employer immediately.

Acceptance of Offer

Before accepting this offer, you should read and understand the terms and conditions of employment outlined in this Letter.

Should you have any queries concerning this offer or your employment conditions, please contact the office on 07 49875557.

To accept this offer of employment, in accordance with this Letter, please sign and return the attached copy of this Letter.

We look forward to your contribution to Lunar Mining and trust it will be a mutually rewarding association.

Yours faithfully,
LUNAR MINING



Brad Comiskey
Director

AGREEMENT OF EMPLOYEE

I, Shane Schleger have read, understand, and agree to all the terms and conditions that apply to my employment with the Employer as outlined in this Letter.

I acknowledge that the Employer may use the wages and benefits which I receive under this contract of employment, to satisfy any obligations to pay to me any entitlements to which I may otherwise be entitled under any award, industrial instrument, or law.

Signed: Shane Schleger
Shane Schleger (Feb 28, 2025 14:03 GMT+11)

Dated: 28/02/25